

বাংলাদেশ সুপ্রীমকোর্ট

হাইকোর্ট বিভাগ

আপীল সম্পর্কিত
ফৌজদারী

জেলা: Bogura

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন

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Md. Alamgir Hossain

আবেদনকারী

মাধ্যম

Mr. Md. Masudul Alam Doha, Advocate

বনাম

The State

Ms. Shiuli Khanom, D.A.G along with

Mr. S.M. Emamul Musfiquir, A.A.G

Mr. Md. Humayun Karim Siddique, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দণ্ডদেশ

Present

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

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কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	19.11.2024	In preferring the Criminal Revision under section 439 read with section 435 of the Code of Criminal Procedure there had been a delay of 64 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 64 days in filing the revision is hereby condoned. Let records be called for and realization of fine be stayed. Let a rule be issued calling upon the opposite party to show cause as to why the judgment and order dated 16.07.2024 passed by the learned Additional Sessions Judge, 2nd Court, Bogura in Criminal Appeal No. 365 of 2024 dismissing the appeal and thereby affirming the judgment and order of conviction and sentence dated 27.03.2024 passed by the learned Senior Judicial Magistrate, 4th Court, Bogura in G.R. Case No. 1553 of 2018 (Sadar) arising out of Bogura Sadar Police Station Case No. 71 dated 25.12.2018 convicting the convict petitioner under table 09 (Ka) of section 19(1) of the Madok Drabbya Niyatron Ain, 1990 and sentencing him to suffer rigorous imprisonment for 06 (six) months and also pay fine of Tk. 500/- (five hundred)) in default to suffer simple imprisonment of 07 (seven) days more should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশের ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the rule, let the convict petitioner Md. Alamgir Hossain, son of Md. A. Sattar be enlarged on ad-interim bail for a period of 01 (one) year on furnishing bail bond to the satisfaction of the learned Senior Judicial Magistrate, 4th Court, Bogura. The rule is made returnable within 4 (four) weeks from date. The petitioner shall put in 2 (two) sets of requisites within 7 days, for service of notice of the rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in vide HCD Rules, Chapter IV Rule 3(6).
		Kashem/B.o